

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

Acquisition Plan Action ID: [REDACTED]

1. **Contracting Activity:** Department of Veterans' Affairs (VA), Network Contracting Office (NCO) 08, Tampa Commodities & Services Branch, located at 8875 Hidden River Parkway, Suite 160A, Tampa, FL 33637.

[REDACTED]

2. **Nature and/or Description of the Action Being Approved:** This procurement is for Olympus Brand Scopes and Ultrasound Systems (BRAND NAME ONLY) in accordance with FAR 13.5 Simplified Procedures for Certain Commercial Items and specifically FAR 13.501, Special Documentation Requirements, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of FAR Part 6, but still require a justification using the format detailed in FAR 6.303-2. With respect to SDVOSB sources, the exclusive authorized reseller is Alliant Enterprises, LLC. This requirement is anticipated as a new Sole Source Firm-Fixed type contract to be awarded to Alliant Enterprises, LLC upon determining the price to be fair and reasonable.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The Digestive Diseases Department of Medicine Services at James A. Haley Veterans' Hospital (JAHVH) has a requirement for replacement of Olympus CF-HQ190L / GIF-HQ190 / PCF-HQ190L / PCF-H190TL / GF-UCT180 / GIF-X190N / GF-UE160-A15 Scopes and Arietta 850 AT Ultrasound systems. The Olympus Brand Name Scopes and Ultrasounds will be used in the Endoscopy/Bronchoscopy suites of the Digestive Diseases Department to provide video imaging during medical procedures, allowing physicians to perform various medical operations. The Ultrasound systems are used during those endoscopy procedures that require diagnostic Ultrasound imaging. Estimated cost for required Olympus Brand Scopes and Ultrasound Systems is [REDACTED].
4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#) up to \$5,000,000. Check the specific VAAR clause used below:
(X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business; or
() 819.7009 Sole source awards to a certified veteran-owned small business.

[REDACTED]

5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** Pursuant to VAAR 819.7008(c) a determination that only one SDVOSB can meet the requirements is not required, though this sole source authority is only to be used when in the best interests of the Government. Alliant Enterprises, LLC has been confirmed as a certified SDVOSB, has been determined to be a responsible contractor, and as discussed further below the CO has determined award can be made at a fair and reasonable price. The below further supports that award is in the Government's best interests.

Olympus Brand Name medical equipment is being used in JAHVH Digestive Diseases Department. Olympus America Inc. (OAI) (Large Business) is the Original Equipment Manufacturer (OEM) and the exclusive authorized reseller is Alliant Enterprises, LLC (SDVOSB). All required Olympus Brand Scopes utilize Responsive Insertion Technology (RIT), which is standard on EVIS EXERA III 190 Series Scopes. RIT is a unique combination of three proprietary Olympus technologies: PB (Passive Bending), HFT (High Force Transmission), and Variable Stiffness. These technologies work together to improve ease of insertion and operator control, which helps to minimize patient discomfort and enhance procedural efficiency. The currently owned Olympus Brand Name light sources and processing equipment are only compatible with Olympus Brand Name Scopes and Ultrasound Systems. Due to Alliant Enterprises, LLC having an exclusive SDVOSB Authorized Reseller Agreement with OAI, it has been determined that the required Olympus Scopes and Ultrasounds can only be acquired from Alliant Enterprises, LLC (SDVOSB) under the authority of VAAR 819.7008. The required Olympus Scopes and Ultrasound Systems must maintain full compatibility with the lineup of Olympus light sources and video processing equipment used within the department (listed below). Olympus stated in all equipment instructions, "If combinations of equipment other than [Olympus branded medical equipment] the full responsibility is assumed by the medical treatment facility". Using non-Olympus brand equipment to interface with the current inventory of Gastroenterology medical equipment may void the standard manufacturer's warranty. The compatibility conditions for Olympus Brand Scopes and Ultrasounds requires interface capability with the following Olympus brand equipment currently in inventory at JAHVH:

- Olympus OEV-262H HD LED Monitors
- Olympus Evis Exera III CLV-190 Light Sources
- Olympus Evis Exera III CV-190 Video Image Processors
- Olympus OBCU Balloon Control Units
- Olympus ESG-100 Monopolar Electrosurgical Units
- Olympus MAJ-1720 Probe Driving Units
- Olympus EU-ME2 Ultrasound Image Processors
- Olympus WM-DP3 Mobile Workstations
- Olympus WM-NP3 Mobile Workstations

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:** On January 27, 2025 an Intent to Sole Source (Notice ID 36C24825Q0257) was posted on Contract Opportunities to ensure no there are no other authorized resellers of OAI medical equipment. The Intent to Sole Source closed on January 31, 2025 at 10:00am and there were no capable and interested vendors to respond to the posting.

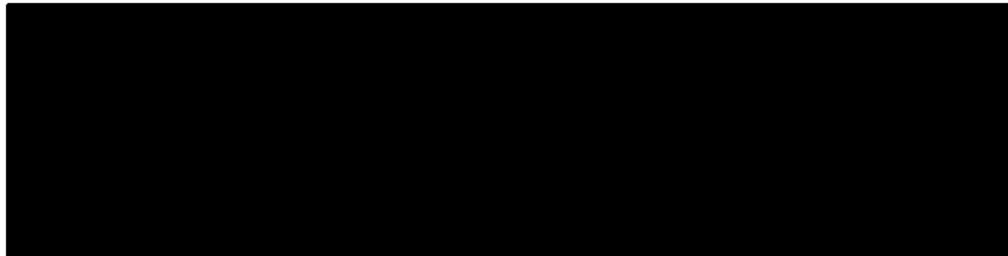
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The proposed price was determined to be fair and reasonable based on a comparison to historical open market, FSS, and ECAT pricing of each line item. Specifically, Alliant provided pricing information in the total amount of [REDACTED], which is the exact pricing by OAI under FSS Contract 36F79721D0168 and Alliant's ECAT Contract SPE2D1-20-D-7008 and SPE2DE-24-D-A013, which, was previously determined fair and reasonable.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Though not required under the authority of VAAR 819.7008, market research revealed only one (1) source available, Alliant Enterprises, LLC (SDVOSB). The Original Equipment Manufacturer, OAI (Large Business) has an exclusive authorized reseller agreement with Alliant Enterprises, LLC dated 12/27/2024, which states "With respect to SDVOSB sources, the exclusive authorized reseller is Alliant Healthcare ("Alliant Enterprises, LLC").
- The NMR requirement is waived for NAICS 334510 (Electromedical and Electrotherapeutic Apparatus Manufacturing) IAW the NMR Class Waiver Database, dated June 2022.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** As noted above, though not required under the authority of VAAR 819.7008 since the proposed contract is under \$5 million, Alliant Enterprises, LLC is a certified SDVOSB which has been determined to be responsible, and the CO has determined award can be made at a fair and reasonable price, Market Research revealed Alliant Enterprises, LLC was the only source available.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** N/A
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** For all subsequent requirements of Scopes & Ultrasounds market research will include reaching out to Olympus to confirm if there have been any updates to their compatibility requirements to include non-Olympus brands that are compatible with JAHVH's current inventory of Olympus brand Gastroenterology equipment. As of now, only Olympus brand Scopes and Ultrasounds are compatible with the current inventory of Olympus brand equipment.

- 12. Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

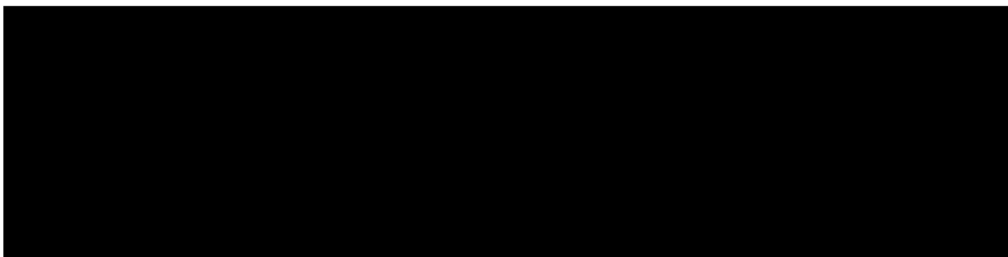


13. Approvals in accordance with the VHAPM Part 806.3 OFOC SOP:

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.



- b. **One Level Above the Contracting Officer (Required over the SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.



- c. **VHA RPO HCA Review and Approval:** I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and recommend approval (if over \$75 million) or approve (\$750K to \$75 million) for other than full and open competition.

